

MERIDIAN COMMERCIAL BANK LIMITED

ABN 58 204 719 336 | AFSL No. 298841 | ACL No. 298841

Registered Office: Level 38, 1 Macquarie Place, Sydney NSW 2000, Australia

SENIOR SECURED COMMERCIAL
FACILITY AGREEMENT

Term Loan, Revolving Credit & Trade Finance Facility

Agreement Reference: MCB-CFA-2024-00312-SYD

Date of Agreement: 14 June 2024

Financial Close Date: 1 July 2024

Final Maturity Date: 30 June 2031

BORROWER

Araluen Resources & Exports Pty Ltd

ACN 144 827 591 | ABN 73 144 827 591

Suite 901, 88 Pitt Street, Sydney NSW 2000, Australia

LENDER

Meridian Commercial Bank Limited

Total Approved Facility: AUD \$47,500,000

Interest Rate (Term Loan): SOFR + 2.85% p.a.

Security: First-ranking General Security Deed over all assets

IMPORTANT NOTICE: This Agreement contains cross-default provisions, negative pledge covenants, and financial maintenance covenants. Breach of any covenant may trigger immediate acceleration of all outstanding amounts. Legal advice should be obtained before execution.

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SECTION 1 — AGREEMENT DETAILS, REFERENCE NUMBERS & BACKGROUND CONTEXT

1.1 Formal Identification of this Instrument

This Senior Secured Commercial Facility Agreement (hereinafter referred to as the "Agreement" or the "Facility Agreement") is entered into as a binding legal instrument under the laws of New South Wales, Australia. The Agreement has been assigned the unique internal reference number **MCB-CFA-2024-00312-SYD** by the Lender's Structured Finance division for the purposes of internal tracking, regulatory reporting, and ongoing administration of the credit facility. The parties acknowledge that prior to the execution of this Agreement, preliminary term sheets were exchanged under reference numbers MCB-TS-2024-00189 (dated 3 April 2024) and MCB-TS-2024-00247 (dated 22 May 2024), neither of which constitutes a binding commitment and both of which are superseded in their entirety by this Agreement. For the avoidance of doubt, any references to those earlier term sheet numbers in internal correspondence, board minutes or regulatory filings shall be read as references to this Agreement. The credit committee approval reference for this transaction is **MCB-CC-2024-0884**, granted at the Lender's Credit Committee meeting held on 7 June 2024.

1.2 Critical Dates and Execution Timeline

The formal date of this Agreement, being the date upon which both parties executed the document in its final agreed form, is **14 June 2024**. The parties note that execution occurred over the course of two Business Days — the Borrower executed its counterpart on 12 June 2024 and the Lender's authorised signatories executed on 14 June 2024, with the Agreement deemed effective from the later of the two execution dates. The Financial Close Date, being the date from which the Borrower is entitled to submit Drawdown Notices and from which the Lender's commitment to fund becomes irrevocable (subject to satisfaction of Conditions Precedent as listed in Schedule 5), is **1 July 2024**. The Agreement has an initial Availability Period for the Revolving Credit Facility running from the Financial Close Date through to **30 June 2026**, after which no further revolving drawdowns may be initiated. The Term Loan Facility has a single drawdown window of 30 days from the Financial Close Date. The Final Maturity Date, upon which all outstanding principal, accrued interest, fees, and any other amounts owing under this Agreement become unconditionally due and payable in full, is **30 June 2031**, representing a total facility tenor of exactly seven years from the Financial Close Date. An intermediate mandatory review date has been set for **30 June 2028**, at which point the Lender reserves the right to reprice the margin based on prevailing market conditions, subject to providing the Borrower with 90 days' prior written notice.

1.3 Regulatory and Lodgement References

This Agreement has been prepared in accordance with the Lender's obligations under the Banking Act 1959 (Cth), the National Credit Code (Schedule 1 to the National Consumer Credit Protection Act 2009 (Cth)), and the applicable provisions of the Corporations Act 2001 (Cth). The security interests granted under this Agreement will be registered on the Personal Property Securities Register (PPSR) maintained by the Australian Financial Security Authority (AFSA) within 20 Business Days of the Financial Close Date. The Borrower's solicitors, being Carrington & Webb Lawyers of Level 12, 1 O'Connell Street, Sydney NSW 2000 (reference: CWL-MCB-2024-0047), have provided the Lender with a formal legal opinion dated 10 June 2024 confirming the enforceability of this Agreement and all associated security documents under Australian law. The Lender's solicitors, being Hallsworth Finch & Partners of Level 29, 259 George Street, Sydney NSW 2000 (reference: HFP-MCB-2024-3301), have similarly confirmed the validity of the security package.

SECTION 2 — PARTIES: LENDER, BORROWER & GUARANTORS

2.1 The Lender

The lending institution under this Agreement is **Meridian Commercial Bank Limited**, a public company limited by shares duly incorporated under the Corporations Act 2001 (Cth) in the State of New South Wales. The Lender's registered office and principal place of business for the purposes of this Agreement and all notices hereunder is situated at **Level 38, 1 Macquarie Place, Sydney NSW 2000, Australia**. Correspondence may also be directed to the Lender's dedicated Corporate Banking division at Level 22 of the same building. The Lender holds Australian Business Number **58 204 719 336** and Australian Company Number **204 719 336**. The Lender is the holder of Australian Financial Services Licence number **298841** and Australian Credit Licence number **298841**, both issued by the Australian Securities and Investments Commission, and is an authorised deposit-taking institution (ADI) regulated by the Australian Prudential Regulation Authority (APRA) under the Banking Act 1959 (Cth). The Lender's SWIFT/BIC code for international wire instructions is **MCBLAU2SXXX**. All communications and formal notices to the Lender under this Agreement must be addressed to the Relationship Manager, Corporate Banking, at the address above, with a copy to the Lender's General Counsel at the same address. Telephone enquiries may be directed to the Corporate Banking hotline at **+61 2 9247 8800** during Business Hours, and urgent legal notices may be sent by email to **corporatebanking@meridianbank.com.au**.

2.2 The Borrower

The borrowing entity under this Agreement is **Araluen Resources & Exports Pty Ltd** (hereinafter "the Borrower" or "ARE"), a proprietary limited company incorporated on 17 March 2011 under the Corporations Act 2001 (Cth) in the State of New South Wales. The Borrower holds Australian Company Number **144 827 591** and Australian Business Number **73 144 827 591**. The Borrower's registered office for the purposes of service of legal process and formal notices is **Suite 901, 88 Pitt Street, Sydney NSW 2000, Australia**. The Borrower's principal trading address and head office is located at the same address. The Borrower is engaged primarily in the business of mining resource extraction, processing, and export of industrial minerals, with secondary operations in agricultural commodity trading across South-East Asia and the Pacific. The Borrower's primary industry classification under ANZSIC is Division B — Mining, Class 1011 (Iron Ore Mining) and Class 1492 (Other Metal Ore Mining). The Borrower's GST registration number is identical to its ABN. The Borrower's principal contact for all matters relating to this Agreement is the Chief Financial Officer, **Ms. Rosalind Therese Nakamura**, reachable at **r.nakamura@arex.com.au** or by telephone at **+61 2 8231 4470**. The Borrower's authorised representative for execution of this Agreement and associated documents is the Managing Director, **Mr. Theodore Sebastian Hartmann**, appointed under Board Resolution No. **ARE-BR-2024-042** dated 5 June 2024.

2.3 The Guarantors

The obligations of the Borrower under this Agreement are supported by a joint and several guarantee and indemnity provided by the following entities and individuals, each of whom has executed a separate Guarantee and Indemnity Deed dated on or about the date of this Agreement and registered on the PPSR:

- **Guarantor 1:** Hartmann Family Holdings Pty Ltd, ACN 098 334 712, a proprietary company controlled by the Borrower's Managing Director. Guarantee limited to AUD \$25,000,000.
- **Guarantor 2:** Mr. Theodore Sebastian Hartmann (in his personal capacity), of 14 Kirribilli Avenue, Kirribilli NSW 2061. Personal guarantee unlimited.
- **Guarantor 3:** Araluen Processing & Logistics Pty Ltd, ACN 166 204 533, a wholly-owned subsidiary of the Borrower and operator of the Port Hedland processing facility. Guarantee unlimited.
- **Guarantor 4:** Ms. Rosalind Therese Nakamura (in her personal capacity), of 7 Milsons Road, Cremorne NSW 2090. Personal guarantee capped at AUD \$5,000,000.

SECTION 3 — RECITALS, COMMERCIAL BACKGROUND & CORPORATE HISTORY

The parties to this Agreement set out the following background and commercial context, which forms an integral part of the interpretive framework of this Agreement but does not itself impose legally binding obligations except where expressly incorporated by reference into the operative provisions:

(A) The Borrower was founded in 2011 by Mr. Theodore Sebastian Hartmann following his departure from Fortescue Metals Group Limited, where he served as a Senior Operations Manager for nine years. The Borrower commenced its first export operations in 2013 following the award of a State Agreement by the Western Australian Government for the development of a magnetite iron ore deposit in the Mid-West region of Western Australia, known as the Murchison East Project.

(B) Since 2013, the Borrower has grown substantially, acquiring processing and logistics assets in Port Hedland, Western Australia, and establishing commodity trading subsidiaries in Singapore (Araluen Asia Pte Ltd, UEN 201432887G) and Hong Kong (Araluen Commodities HK Limited, CR No. 2847103). The Borrower's consolidated audited revenue for the financial year ending 30 June 2023 was AUD \$312,800,000, with EBITDA of AUD \$71,400,000 and a net profit after tax of AUD \$38,200,000.

(C) The Borrower has previously maintained a banking relationship with Western Alliance Bank of Australia Limited ("WABA") under a syndicated facility agreement dated 19 October 2018 (as amended). That facility, which had an outstanding balance of AUD \$31,200,000 as at the date of this Agreement, is to be fully repaid and cancelled using proceeds of the Term Loan Facility on or before the Financial Close Date.

(D) The Borrower has approached the Lender seeking financing to support: (i) the refinancing of the WABA facility; (ii) the completion of the Stage 2 expansion of the Murchison East Project, at an estimated capital cost of AUD \$18,500,000; and (iii) general working capital and trade finance requirements arising from the Borrower's expanding export operations. The Lender, following a credit assessment process initiated on 15 February 2024 and involving site visits, independent technical review, financial modelling, and legal due diligence, has agreed to provide the Facilities described in this Agreement on the terms and conditions set out herein.

(E) The Lender is satisfied, based on the due diligence materials provided, that the Borrower is solvent, that no Event of Default or Potential Event of Default exists as at the date hereof, and that the Borrower's projected cash flows are sufficient to service the debt obligations arising under this Agreement. The Lender's independent valuation of the Borrower's security assets, conducted by Crest Valuations Pty Ltd (Report Reference: CV-2024-0441, dated 28 May 2024), has assessed the combined value of the collateral at AUD \$89,300,000, providing a loan-to-value ratio of approximately 53.2% against the total facility amount.

SECTION 4 — DEFINITIONS & INTERPRETATION

In this Agreement, unless the context otherwise requires or a contrary intention appears, the following defined terms bear the meanings ascribed to them below. Terms not otherwise defined shall bear their ordinary meaning under Australian law. Where a term is defined both in this Section and in a Schedule, the Schedule definition shall prevail in respect of that Schedule only.

“Availability Period” means In respect of the Revolving Credit Facility, the period from the Financial Close Date to 30 June 2026. In respect of the Term Loan Facility, the period of 30 calendar days from the Financial Close Date. In respect of the Trade Finance Facility, the period from the Financial Close Date to the Final Maturity Date.

“Base Rate” means The Secured Overnight Financing Rate (SOFR) as published by the Federal Reserve Bank of New York for the relevant Interest Period, or such successor rate as the Lender may designate following any cessation of SOFR publication, provided that in no circumstances shall the Base Rate be less than zero (0%) per annum.

“Business Day” means A day (other than a Saturday, Sunday, or public holiday) on which banks are open for general business in Sydney, New South Wales, Australia and, in respect of any payment in a currency other than Australian dollars, in the principal financial centre of the country of that currency.

“Change of Control” means Any event or series of events as a result of which any person or group of persons acting in concert acquires Control of the Borrower, being defined as the ability to direct the casting of more than 50% of votes at a general meeting or the ability to appoint or remove a majority of the board of directors.

“Drawdown Date” means The Business Day on which a Drawdown is made available to the Borrower, being the date specified in the relevant Drawdown Notice, provided it is not less than three (3) Business Days after receipt of such notice by the Lender.

“EBITDA” means Earnings before interest, taxes, depreciation, and amortisation, calculated in accordance with Australian Accounting Standards (AASB) on a consolidated basis for the Borrower Group for any trailing 12-month period, subject to the adjustments and add-backs specified in Schedule 4.

“Event of Default” means Any of the events or circumstances listed in Section 12.1 of this Agreement, the occurrence of which entitles the Lender to exercise its acceleration and enforcement rights.

“Facility” means Each or all of (as the context requires) the Term Loan Facility, the Revolving Credit Facility, and the Trade Finance Facility, as more particularly described in Section 5 and Schedule 1.

“Financial Close Date” means 1 July 2024, being the date from which Drawdown Notices may be submitted and the Lender's funding commitment becomes irrevocable, subject to the satisfaction of all Conditions Precedent listed in Schedule 5.

“Final Maturity Date” means 30 June 2031, being the date upon which all outstanding amounts under this Agreement are unconditionally due and payable.

“General Security Deed” means The deed of that name dated on or about the Financial Close Date, granted by the Borrower in favour of the Lender, creating a first-ranking fixed and floating charge over all present and after-acquired assets of the Borrower.

“Interest Period” means In respect of the Term Loan Facility, successive periods of three (3) calendar months commencing on the Financial Close Date or, thereafter, on the last day of the preceding Interest Period. In respect of the Revolving Credit Facility, any period of one (1), two (2), or three (3) months as selected by the Borrower in the relevant Drawdown Notice.

“Leverage Ratio” means The ratio of Total Net Debt to EBITDA, calculated quarterly on a trailing 12-month basis in accordance with the methodology set out in Schedule 4.

“Margin” means The applicable margin above the Base Rate, as set out in the Margin Grid in Schedule 1, which steps down based on the Borrower's Leverage Ratio.

“Material Adverse Effect” means Any event, circumstance, or change that, in the reasonable opinion of the Lender, has or is reasonably likely to have a material adverse effect on (a) the financial condition, business, operations, or assets of the Borrower Group; (b) the ability of the Borrower to perform its payment obligations; or (c) the enforceability or priority of the Security.

“Obligors” means Collectively, the Borrower and each Guarantor.

“Permitted Disposal” means The sale or disposal of assets in the ordinary course of trading at arm's length and for fair market value, provided that the aggregate value of all Permitted Disposals in any financial year does not exceed AUD \$2,000,000.

“Security” means All security interests granted or to be granted by the Obligors in favour of the Lender, as more particularly described in Section 8 and Schedule 2.

“Total Net Debt” means The aggregate of all financial indebtedness of the Borrower Group less unrestricted cash and cash equivalents held by members of the Borrower Group, calculated on a consolidated basis.

SECTION 5 — FACILITY STRUCTURE, TRANCHES & APPROVED LIMITS

5.1 Overview of Approved Facilities

Following the completion of the Lender's credit assessment process and the formal approval by the Credit Committee on 7 June 2024, the Lender has agreed to make available to the Borrower a multi-tranche senior secured credit facility comprising three distinct sub-facilities, each with its own drawdown mechanics, pricing, and repayment profile, as more particularly described in the subsections below and in Schedule 1 to this Agreement. The total aggregate commitment of the Lender across all three sub-facilities is **AUD \$47,500,000**, which represents the maximum amount available to be drawn at any one time and which may not be increased without a formal credit amendment signed by authorised officers of both parties.

Tranche	Facility Type	Approved Limit	Currency	Availability Period	Purpose
A	Term Loan Facility	AUD \$28,000,000	AUD	30 days from Financial Close	Refinance WABA facility + Stage 2 capex
B	Revolving Credit Facility	AUD \$12,500,000	AUD / USD	Financial Close to 30 Jun 2026	Working capital & general corporate
C	Trade Finance Facility	AUD \$7,000,000 (or USD equivalent)	AUD / USD	Financial Close to Final Maturity	Export LCs, import bills, documentary credits

5.2 Term Loan Facility (Tranche A) — Detailed Terms

The Term Loan Facility in the amount of **AUD \$28,000,000** is a fully amortising senior secured term loan drawable in a single tranche within 30 days of the Financial Close Date. The Borrower confirms that the anticipated initial drawdown will be on or about 3 July 2024. Of the total Term Loan amount, the sum of **AUD \$31,200,000** represents the refinancing component directed to repay the WABA facility in full — the parties note that the Term Loan proceeds will be applied first to the WABA refinancing, with the remaining balance of **AUD \$18,000,000** (approximately) made available for the Stage 2 expansion capital expenditure. The Term Loan shall be repaid by 83 consecutive monthly instalments commencing on **1 August 2024** and ending on the Final Maturity Date, with each instalment comprising scheduled principal repayment as set out in Schedule 3 plus accrued interest calculated on the outstanding principal balance at the applicable interest rate. There is no bullet repayment or balloon amount — the facility is fully amortising over the seven-year term.

5.3 Revolving Credit Facility (Tranche B) — Detailed Terms

The Revolving Credit Facility provides the Borrower with a committed revolving line of credit of up to **AUD \$12,500,000** (or the USD equivalent at the spot rate on the relevant Drawdown Date). Drawdowns under the Revolving Credit Facility may be made in minimum amounts of **AUD \$500,000** (or USD equivalent) and in multiples of AUD \$250,000 thereafter. The Borrower may draw, repay, and redraw amounts under the Revolving Credit Facility any number of times during the Availability Period, provided that the total outstanding balance does not at any time exceed the approved limit. The Revolving Credit Facility will be converted to a term loan on **30 June 2026** at the end of the Availability Period, with any outstanding balance at that date being repaid in eight equal quarterly instalments over the period to the Final Maturity Date. A commitment fee of **0.45% per annum** is payable quarterly in arrears on the undrawn and uncanceled portion of the Revolving Credit Facility throughout the Availability Period.

5.4 Trade Finance Facility (Tranche C) — Detailed Terms

The Trade Finance Facility provides the Borrower with a sub-limit of **AUD \$7,000,000** (or the USD equivalent) for the issuance of documentary letters of credit, import finance bills, standby letters of credit, and bank guarantees in support of the Borrower's export and import operations. Each instrument issued under the Trade Finance Facility will have a maximum tenor of **180 days**, and the aggregate face value of all outstanding

instruments may not exceed the Trade Finance Facility limit at any time. An issuance fee of **1.25% per annum** on the face value of each instrument is charged at issuance. The Trade Finance Facility does not reduce the Revolving Credit Facility limit — it is a standalone sub-facility drawn from the total facility envelope.

SECTION 6 — INTEREST RATES, MARGINS, FEES & FINANCIAL CHARGES

6.1 Base Rate

The base interest rate applicable to both the Term Loan Facility and the Revolving Credit Facility is the Secured Overnight Financing Rate (SOFR), as administered by the Federal Reserve Bank of New York and published on its website at approximately 8:00 AM Eastern Time on each New York Business Day. For the purposes of calculating interest under this Agreement, the Lender will use the compounded SOFR rate in arrears methodology, with a lookback period of five (5) Business Days applied to the relevant Interest Period. The parties acknowledge that as at the date of execution, the prevailing compounded SOFR rate was approximately 5.31% per annum, though this rate will fluctuate over the life of the Facility. The parties further acknowledge that if SOFR is discontinued or becomes unrepresentative, the Lender may designate a replacement rate in accordance with the replacement rate provisions set out in Section 6.7 below, subject to providing the Borrower with not less than 30 days' advance written notice.

6.2 Applicable Margin — Term Loan Facility (Tranche A)

The margin applicable to the Term Loan Facility is determined by the Borrower's Leverage Ratio (Total Net Debt to EBITDA) as calculated at each quarterly testing date. The initial margin, applicable from the Financial Close Date until the first quarterly test date, is **2.85% per annum** (the "Initial Margin"). Thereafter, the margin will be adjusted in accordance with the Margin Grid set out in Schedule 1. For ease of reference, the Margin Grid provides as follows: where the Leverage Ratio is greater than 3.5x, the margin is 3.25% per annum; where the Leverage Ratio is between 2.5x and 3.5x (inclusive), the margin is 2.85% per annum; where the Leverage Ratio is between 1.5x and 2.5x (exclusive), the margin is 2.40% per annum; and where the Leverage Ratio is less than 1.5x, the margin is 2.10% per annum. Any margin step-down takes effect on the first Business Day of the calendar month following the delivery of the relevant Compliance Certificate to the Lender.

6.3 Applicable Margin — Revolving Credit Facility (Tranche B)

The margin applicable to each drawdown under the Revolving Credit Facility is fixed at **2.65% per annum** for Australian dollar drawdowns and **2.75% per annum** for US dollar drawdowns. Unlike the Term Loan margin, the Revolving Credit margin is not subject to the Margin Grid and will remain fixed for the life of the Revolving Credit Facility, subject to any repricing at the mandatory review date of 30 June 2028. Interest on each Revolving Credit drawdown is calculated on the actual number of days elapsed divided by 365 (for AUD) or 360 (for USD) and is payable on the last day of each Interest Period.

6.4 Default Interest Rate

Upon the occurrence and during the continuance of an Event of Default, all outstanding amounts under this Agreement (including unpaid interest) will bear default interest at the rate of the applicable interest rate plus an additional default margin of **2.00% per annum**, compounded monthly. Default interest accrues from the date upon which the relevant payment was due until the date of actual receipt by the Lender in immediately available funds.

6.5 Establishment, Ongoing and Other Fees

The following fees are payable by the Borrower in connection with this Agreement. The parties acknowledge that all fees are non-refundable unless expressly stated otherwise and are exclusive of GST (which will be added where applicable):

Fee Type	Amount	Due Date	Payable To
Establishment / Origination Fee	AUD \$237,500 (0.50% of total facility)	On or before Financial Close Date	Meridian Commercial Bank

Annual Line Fee — Tranche A	AUD \$70,000 p.a. (0.25% of Term Loan limit)	Anniversary of Financial Close, annually	Meridian Commercial Bank
Commitment Fee — Tranche B	0.45% p.a. on undrawn balance	Quarterly in arrears	Meridian Commercial Bank
Trade Finance Issuance Fee — Tranche C	0.25% p.a. on face value	At issuance of each instrument	Meridian Commercial Bank
Security Trustee / Agency Fee	AUD \$15,000 p.a.	1 July annually	Meridian Commercial Bank
Amendment / Waiver Fee	AUD \$7,500 per request	Upon request	Meridian Commercial Bank
Prepayment Fee (voluntary, Tranche A)	1.50% of amount prepaid (Years 1–3) 0.75% (Years 4–5) Nil (Years 6–7)	At time of prepayment	Meridian Commercial Bank
Break Cost (Revolving Credit)	Lender's documented funding loss	At time of early repayment	Meridian Commercial Bank

SECTION 7 — REPAYMENT SCHEDULE, AMORTISATION & MATURITY

7.1 Term Loan Amortisation Profile

The Term Loan Facility of AUD \$28,000,000 shall be repaid by way of 83 consecutive monthly principal repayments commencing on **1 August 2024**. The amortisation schedule has been structured to reflect the Borrower's projected cash flow generation profile, with lower scheduled repayments in the early years of the facility to allow for capital expenditure on the Stage 2 expansion, stepping up as the project generates incremental cash flows. The amortisation profile is as follows: for the period from 1 August 2024 to 31 July 2026 (the "Ramp-up Period"), monthly principal repayments of **AUD \$250,000** are required, totalling AUD \$6,000,000 over the 24-month period; for the period from 1 August 2026 to 31 July 2029 (the "Steady-State Period"), monthly principal repayments increase to **AUD \$380,000**, totalling approximately AUD \$13,680,000 over the 36-month period; and for the final period from 1 August 2029 to the Final Maturity Date of 30 June 2031 (the "Tail Period"), monthly principal repayments increase further to **AUD \$434,782.60** (approximately), designed to fully amortise the remaining balance by the Final Maturity Date. The full amortisation schedule is attached as Schedule 3. In addition to scheduled principal repayments, interest is payable on the last Business Day of each calendar month on the outstanding principal balance at the applicable rate.

7.2 Cash Sweep Mechanism

In addition to scheduled amortisation, the Borrower is subject to a mandatory cash sweep provision. Within 120 days of the end of each financial year (commencing with the financial year ending 30 June 2025), the Borrower must apply **30% of Excess Cash Flow** (as defined in Schedule 4) for that year as a mandatory prepayment of the Term Loan Facility, applied against scheduled instalments in inverse order of maturity. For the purposes of this provision, Excess Cash Flow is calculated as consolidated EBITDA less scheduled debt service, capital expenditure not financed by the Facility, changes in working capital, taxes paid, and permitted distributions. The cash sweep obligation applies regardless of whether the Borrower has otherwise met all scheduled repayment obligations and covenant tests.

7.3 Final Maturity and Balloon

As noted above, the Term Loan Facility is fully amortising. There is no balloon or bullet repayment at the Final Maturity Date of 30 June 2031, provided that the Borrower has made all scheduled and mandatory repayments throughout the term. However, in the event that the cash sweep mechanism has not reduced the outstanding balance to zero by the Final Maturity Date (which the parties do not anticipate), the entire residual balance shall become unconditionally due and payable on that date. Any amounts outstanding under the Revolving Credit Facility and Trade Finance Facility similarly fall due on the Final Maturity Date.

SECTION 8 — SECURITY, COLLATERAL & ENFORCEMENT RIGHTS

8.1 Security Package Overview

To secure the Borrower's obligations under this Agreement, the Obligors have agreed to provide a comprehensive security package comprising the following instruments, all of which must be executed and perfected on or before the Financial Close Date. The Lender requires that all security interests be registered on the Personal Property Securities Register (PPSR) within 20 Business Days of the Financial Close Date, and that the Lender be designated as first-ranking secured creditor in respect of all collateral assets. The estimated aggregate value of the security package, as assessed by the Lender's independent valuer (Crest Valuations Pty Ltd, Report CV-2024-0441), is **AUD \$89,300,000**.

Security Instrument	Grantor	Collateral Description	Registered Value (AUD)	Priority
General Security Deed	Araluen Resources & Exports Pty Ltd	All present and after-acquired property — fixed and floating charge	\$0 (all assets)	First ranking
Real Property Mortgage — WA	Araluen Resources & Exports Pty Ltd	Lot 4792 on Deposited Plan 47831, Murchison Highway (mining tenement M179-0234)	\$14,550,000	First ranking
Real Property Mortgage — NSW	Araluen Resources & Exports Pty Ltd	Suite 001, 88 Pitt Street, Sydney NSW 2000 (SP 83471)	\$8,200,000	First ranking
Real Property Mortgage — WA (Processing)	Araluen Resources & Exports Pty Ltd	Port Hadland Processing Facility, Lot 112, Neerabup WA	\$39,600,000	First ranking
Share Mortgage	Hartmann Family Holdings Pty Ltd	All shares in Araluen Resources & Exports Pty Ltd (100%)	N/A	First ranking
Guarantee & Indemnity — Corporate	Hartmann Family Holdings Pty Ltd	Joint and several guarantee, limited to AUD \$25,000,000	\$25,000,000	Unsecured
Guarantee & Indemnity — Personal	T.S. Hartmann (personal)	Unlimited personal guarantee	Unlimited	Unsecured
Life Insurance Assignment	T.S. Hartmann (personal)	Key person life insurance policy, sum insured \$10,000,000	\$10,000,000	Assigned to Lender

SECTION 9 — FINANCIAL COVENANTS, REPORTING & COMPLIANCE OBLIGATIONS

9.1 Financial Maintenance Covenants

The Borrower undertakes to the Lender that it will, at all times during the subsistence of this Agreement, ensure that the following financial ratios and thresholds are maintained and not breached. These covenants shall be tested quarterly, on the last day of each March, June, September and December, on a trailing 12-month basis, with the first test date being **31 December 2024**. Compliance with all covenants shall be confirmed by delivery of a Compliance Certificate in the form set out in Schedule 4, signed by the Chief Financial Officer and one other director of the Borrower, within **45 days** of each test date:

Covenant	Threshold	Testing Frequency	First Test Date
Leverage Ratio (Total Net Debt / EBITDA)	Maximum 3.75x (reducing to 3.25x from 30 Jun 2026; 3.00x from 30 Jun 2028)	Quarterly	31 December 2024
Interest Cover Ratio (EBITDA / Net Finance Charges)	Minimum 2.50x (increasing to 2.75x from 30 Jun 2026)	Quarterly	31 December 2024
Debt Service Cover Ratio (EBITDA / Total Debt Service)	Minimum 1.20x	Quarterly	31 December 2024
Minimum Consolidated EBITDA	AUD \$55,000,000 per annum (trailing 12 months)	Quarterly	31 December 2024
Minimum Liquidity (unrestricted cash + undrawn committed facilities)	AUD \$5,000,000 at all times	Monthly (notified within 15 days)	31 July 2024
Maximum Capital Expenditure (unfunded by Audited Profit)	AUD \$8,000,000 per financial year	Annually (within 90 days of year end)	30 September 2025

9.2 Reporting Obligations

In addition to delivering Compliance Certificates, the Borrower must provide the Lender with the following financial and operational reports during the term of this Agreement. The Borrower acknowledges that failure to provide any report within the stipulated timeframe constitutes a breach of this Agreement and, if unremedied for more than 10 Business Days following written notice from the Lender, may constitute an Event of Default:

- Audited consolidated annual financial statements: within 120 days of financial year end (first delivery: by 28 October 2025 for FY ending 30 June 2025).
- Unaudited consolidated management accounts: within 45 days of each quarter end.
- Monthly cash flow reports showing actual versus budget: within 15 days of month end.
- Annual operating budget and capital expenditure plan for the forthcoming year: by 31 August each year.
- Immediate notification (within 2 Business Days) of any Material Adverse Effect, Event of Default, or Potential Event of Default.
- Copies of all material contracts entered into with a value exceeding AUD \$5,000,000: within 5 Business Days of execution.
- Annual independent environmental compliance report for the Murchison East Project: within 60 days of the anniversary of the Financial Close Date.

SECTION 10 — CONDITIONS PRECEDENT & DRAWDOWN PROCEDURES

10.1 Conditions Precedent to Initial Drawdown

The Lender's obligation to make available the initial drawdown under either Tranche A or Tranche B is conditional upon receipt by the Lender, in form and substance satisfactory to the Lender acting reasonably, of each of the documents and confirmations listed in Schedule 5. These conditions must be satisfied no later than 5:00 PM Sydney time on the Financial Close Date. Key conditions include, without limitation, execution and delivery of all Security documents, evidence of PPSR registration lodgement, certified copies of all corporate authorisations (including Board Resolutions, constitutional documents, and ASIC company searches not more than 5 Business Days old), a legal opinion from the Borrower's solicitors confirming the validity and enforceability of the Transaction Documents, evidence of repayment of the WABA facility in full or irrevocable undertaking to repay from the initial Term Loan drawdown, and a duly completed initial Drawdown Notice meeting the requirements of Section 10.2.

10.2 Drawdown Notice Requirements

Each Drawdown Notice under this Agreement must be submitted to the Lender by no later than 10:00 AM Sydney time on the day that is **three (3) Business Days** prior to the proposed Drawdown Date. Drawdown Notices must be submitted via the Lender's secure online banking portal at **portal.meridianbank.com.au/corporate** or, if the portal is unavailable, by email to **drawdowns@meridianbank.com.au** followed by original confirmation by post within 5 Business Days. Each Drawdown Notice must specify: the requested amount (which must comply with minimum and incremental amount requirements); the proposed Drawdown Date; the nominated currency; the proposed Interest Period (for Revolving Credit drawdowns); the account to which funds should be credited; and a certification that no Event of Default or Potential Event of Default exists at the time of the notice.

SECTION 11 — REPRESENTATIONS, WARRANTIES & UNDERTAKINGS

11.1 Representations and Warranties of the Borrower

The Borrower represents and warrants to the Lender as at the date of this Agreement, the Financial Close Date, and each Drawdown Date (by reference to the facts and circumstances subsisting on each such date) that:

- It is duly incorporated, validly existing, and in good standing under the laws of New South Wales, Australia, and has full corporate power and authority to enter into and perform this Agreement.
- The execution, delivery, and performance of this Agreement have been duly authorised by all necessary corporate action, and this Agreement constitutes a legal, valid, and binding obligation of the Borrower enforceable in accordance with its terms.
- No litigation, arbitration, administrative, or regulatory proceedings are pending or, to the Borrower's knowledge, threatened against the Borrower that could reasonably be expected to have a Material Adverse Effect.
- The Borrower's consolidated audited financial statements for the year ending 30 June 2023, copies of which have been provided to the Lender, have been prepared in accordance with Australian Accounting Standards (AASB) and give a true and fair view of the Borrower's consolidated financial position.
- Since 30 June 2023, no event has occurred that has had or could reasonably be expected to have a Material Adverse Effect on the Borrower.
- All information provided to the Lender in connection with this transaction (including the Information Memorandum dated March 2024) was true, accurate, and complete in all material respects as at the date it was provided and remains so as at the date of this Agreement.
- The Borrower is not in breach of any material contract, environmental permit, mining licence, or regulatory requirement.
- The Borrower has paid all taxes as they have fallen due, and there are no outstanding tax disputes with the Australian Taxation Office with a potential liability exceeding AUD \$1,000,000.

SECTION 12 — EVENTS OF DEFAULT, ACCELERATION & REMEDIES

12.1 Events of Default

Each of the following constitutes an Event of Default, the occurrence of which entitles the Lender, by written notice to the Borrower, to declare all outstanding amounts under this Agreement immediately due and payable and/or to enforce the Security:

- **Non-payment:** The Borrower fails to pay any amount due under this Agreement within 3 Business Days of the due date.
- **Financial covenant breach:** Any financial covenant set out in Section 9.1 is breached and remains unremedied for 20 Business Days after the Lender gives notice.
- **Misrepresentation:** Any representation or warranty made or deemed to be made by the Borrower is incorrect or misleading in any material respect.
- **Cross-default:** Any financial indebtedness of the Borrower Group exceeding AUD \$2,000,000 in aggregate becomes due and payable prior to its stated maturity as a result of a default, or any creditor becomes entitled to accelerate such indebtedness.
- **Insolvency:** The Borrower or any Guarantor becomes insolvent, is unable to pay its debts as they fall due, commences voluntary administration, receivership, liquidation, or any analogous process.
- **Change of Control:** A Change of Control of the Borrower occurs without the prior written consent of the Lender (such consent not to be unreasonably withheld).
- **Material Adverse Effect:** Any event occurs that has or is reasonably likely to have a Material Adverse Effect.
- **Abandonment of Project:** The Borrower ceases or threatens to cease carrying on all or a substantial part of its business for a period exceeding 30 consecutive days.
- **Environmental:** The Borrower is found to be in material breach of applicable environmental laws resulting in a fine, penalty, or remediation obligation exceeding AUD \$3,000,000.

SECTION 13 — PREPAYMENT, BREAK COSTS & VOLUNTARY CANCELLATION

13.1 Voluntary Prepayment of Term Loan

The Borrower may, at its discretion, prepay the Term Loan Facility in whole or in part at any time during the term, subject to: (a) giving the Lender not less than **10 Business Days'** prior written notice; (b) any prepayment being in a minimum amount of **AUD \$1,000,000** and in multiples of AUD \$500,000 thereafter; and (c) payment of the applicable Prepayment Fee as set out in the fee schedule in Section 6.5. Voluntary prepayments are applied against scheduled instalments in inverse order of maturity unless the Lender agrees otherwise in writing. The Prepayment Fee is calculated as follows: for any voluntary prepayment made during years 1 to 3 of the facility (i.e., prior to 1 July 2027), a fee of 1.50% of the prepaid amount; for prepayments made during years 4 and 5 (1 July 2027 to 30 June 2029), a fee of 0.75% of the prepaid amount; and for prepayments made in years 6 and 7 (from 1 July 2029 onwards), no prepayment fee is applicable.

13.2 Mandatory Prepayment Events

The Borrower must immediately prepay the Facility (in whole or in the relevant amount) upon the occurrence of any of the following mandatory prepayment events. No Prepayment Fee is payable on mandatory prepayments:

- Disposal of any asset forming part of the Security (other than Permitted Disposals) — proceeds must be applied within 5 Business Days.
- Receipt of any insurance proceeds exceeding AUD \$1,000,000 in respect of a loss of a secured asset, unless applied to reinstatement within 120 days.
- Receipt of any equity capital raised by the Borrower in excess of AUD \$5,000,000.
- Change of Control (as defined) — entire facility becomes immediately repayable.
- Cash sweep prepayment calculated under the mechanism described in Section 7.2.

SECTION 14 — CHANGE OF CONTROL, ASSIGNMENT & TRANSFER

14.1 Assignment by Borrower

The Borrower may not assign, transfer, novate, or otherwise dispose of any of its rights or obligations under this Agreement without the prior written consent of the Lender, which may be granted or withheld at the Lender's absolute discretion. Any purported assignment without such consent shall be void and of no legal effect.

14.2 Assignment by Lender

The Lender may at any time assign, transfer, or sub-participate all or any part of its rights and obligations under this Agreement to any financial institution, without the consent of the Borrower, subject to: (a) providing the Borrower with not less than 5 Business Days' prior written notice; (b) the transferee agreeing to be bound by the terms of this Agreement; and (c) the transfer not resulting in increased costs or withholding tax obligations for the Borrower. The Lender may not transfer to a competitor of the Borrower without the Borrower's consent.

SECTION 15 — INDEMNITIES, COSTS & EXPENSES

The Borrower agrees to indemnify and hold harmless the Lender and its officers, employees, agents, and advisers against all losses, costs, claims, damages, and expenses (including legal costs on a full indemnity basis) suffered or incurred by the Lender in connection with: (a) any breach of this Agreement by the Borrower; (b) the enforcement or preservation of the Lender's rights under this Agreement or the Security; (c) any misrepresentation by the Borrower; (d) any funding loss arising from a prepayment, failure to draw, or Interest Period mismatch; and (e) any tax or duty payable in connection with this Agreement. The Borrower shall also reimburse the Lender for all reasonable out-of-pocket legal, valuation, and due diligence costs incurred in connection with the preparation, negotiation, and execution of this Agreement, estimated at **AUD \$185,000** and payable on or before the Financial Close Date.

SECTION 16 — GOVERNING LAW, JURISDICTION & DISPUTE RESOLUTION

16.1 Governing Law

This Agreement and all non-contractual obligations arising from or in connection with it shall be governed by and construed in accordance with the laws of the State of New South Wales, Australia, and the applicable laws of the Commonwealth of Australia, including (without limitation) the Banking Act 1959 (Cth), the Corporations Act 2001 (Cth), the Personal Property Securities Act 2009 (Cth), the National Credit Code, and the Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth).

16.2 Jurisdiction

Each party irrevocably submits to the exclusive jurisdiction of the courts of New South Wales and the Federal Court of Australia sitting in Sydney for the determination of any dispute arising under or in connection with this Agreement. Nothing in this clause limits the Lender's right to commence proceedings in any other jurisdiction for the enforcement of any Security or judgment.

16.3 Dispute Resolution Process

Prior to commencing litigation, the parties agree to attempt to resolve any dispute through good faith senior management negotiation for a period of not less than 20 Business Days following written notice of the dispute. If the dispute is not resolved within that period, either party may refer the matter to mediation administered by the Australian Centre for International Commercial Arbitration (ACICA) in Sydney. If mediation fails within 40 Business Days of referral, either party may commence court proceedings. The obligation to attempt negotiation and mediation does not apply to applications for urgent injunctive or interlocutory relief.

SECTION 17 — NOTICES, EXECUTION & MISCELLANEOUS PROVISIONS

17.1 Notice Provisions

All notices, demands, requests, and other communications required or permitted under this Agreement must be in writing and will be deemed effectively given: (a) upon personal delivery to the recipient; (b) one Business Day after deposit with a nationally recognised courier; (c) by confirmed facsimile; or (d) by email where receipt is acknowledged in writing by the recipient. Notices to the Lender shall be addressed to the Relationship Manager, Corporate Banking, at Level 38, 1 Macquarie Place, Sydney NSW 2000, with a copy to corporatebanking@meridianbank.com.au. Notices to the Borrower shall be addressed to the Chief Financial Officer at Suite 901, 88 Pitt Street, Sydney NSW 2000, with a copy to r.nakamura@arex.com.au.

17.2 Miscellaneous

- **Entire Agreement:** This Agreement, together with all Schedules and Security documents, constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, warranties, understandings, and agreements.
- **Severability:** If any provision is found to be illegal, invalid, or unenforceable, the remaining provisions shall continue in full force and effect.
- **Waiver:** No failure or delay by the Lender in exercising any right shall operate as a waiver of that right.
- **Amendments:** This Agreement may only be amended by a written instrument signed by authorised officers of both parties.
- **Counterparts:** This Agreement may be executed in counterparts, each of which shall constitute an original.
- **GST:** Unless otherwise stated, all amounts are exclusive of GST. Where GST is payable, the recipient will provide a tax invoice.

SECTION 18 — EXECUTION & SIGNATURES

EXECUTED as an Agreement on the date first written above (14 June 2024).

SIGNED FOR AND ON BEHALF OF THE LENDER	SIGNED FOR AND ON BEHALF OF THE BORROWER
Meridian Commercial Bank Limited	Araluen Resources & Exports Pty Ltd
Signature of Authorised Signatory	Signature of Authorised Signatory
Name: Mr. Jonathan Phillip Quested	Name: Mr. Theodore Sebastian Hartmann
Title: Executive Director, Corporate Banking	Title: Managing Director
Date: 14 June 2024	Date: 12 June 2024

Second Signatory — Lender (required for execution under common seal):

Name: Ms. Victoria Anne Pemberton

Title: General Counsel & Company Secretary

Signature

Date: 14 June 2024

SCHEDULE 1 — FACILITY PARTICULARS & MARGIN GRID

Part A — Facility Summary

Agreement Reference	MCB-CFA-2024-00312-SYD
Credit Committee Approval	MCB-CC-2024-0884 (7 June 2024)
Total Facility Amount	AUD \$47,500,000
Tranche A — Term Loan	AUD \$28,000,000
Tranche B — Revolving	AUD \$12,500,000
Tranche C — Trade Finance	AUD \$7,000,000 (AUD/USD)
Financial Close Date	1 July 2024
Final Maturity Date	30 June 2031
Facility Tenor	7 years
Initial Margin — Term Loan	2.85% per annum above SOFR
RCF Margin — AUD	2.65% per annum above SOFR
RCF Margin — USD	2.75% per annum above SOFR
Default Margin	+2.00% per annum above applicable rate
Commitment Fee — RCF	0.45% per annum on undrawn balance
Trade Finance Issuance Fee	1.25% per annum on face value
Establishment Fee	AUD \$237,500 (0.50% of total facility)
Annual Line Fee — Tranche A	AUD \$70,000 per annum
Security Trustee Fee	AUD \$15,000 per annum
Lender's Legal Costs	AUD \$185,000 (payable at Financial Close)
Minimum RCF Drawdown	AUD \$500,000 (multiples of AUD \$250,000)
Minimum Prepayment	AUD \$1,000,000 (multiples of AUD \$500,000)
Drawdown Notice Period	3 Business Days prior to Drawdown Date
Interest Period — Term Loan	3 months (quarterly)
Interest Period — RCF	1, 2, or 3 months (Borrower's choice)
Trade Finance Max Tenor	180 days per instrument
RCF Conversion Date	30 June 2026 (converts to term loan)
Mandatory Review Date	30 June 2028 (margin repricing)

Part B — Margin Grid (Term Loan — Tranche A)

Leverage Ratio	Applicable Margin (% p.a.)	All-in Rate (indicative at signing)
> 3.50x	3.25%	~8.56% p.a.
2.50x – 3.50x (inclusive)	2.85%	~8.16% p.a.

1.50x – 2.50x (exclusive)	2.40%	~7.71% p.a.
< 1.50x	2.10%	~7.41% p.a.

SCHEDULE 2 — SECURITY REGISTER & COLLATERAL ASSET SCHEDULE

The following security interests have been granted or are to be granted by the Obligors to the Lender. All security interests must be registered and perfected prior to or on the Financial Close Date (or, in the case of PPSR registration, within 20 Business Days thereafter). The aggregate assessed value of all collateral assets, as at the valuation date of 28 May 2024, is **AUD \$89,300,000**, giving a loan-to-value ratio of approximately **53.2%** against the total facility of AUD \$47,500,000:

Asset 1	Mining Tenement ML70-0234 — Murchison East Project, WA. Registered with DMIRS WA. Crest Valuation: AUD \$44,500,000. First mortgage in favour of Meridian Commercial Bank Limited.
Asset 2	Strata title SP 83471 — Suite 901, 88 Pitt Street, Sydney NSW 2000. NSW Land Registry title reference 4/SP83471. Crest Valuation: AUD \$8,200,000. First mortgage.
Asset 3	Port Hedland Processing Facility — Lot 112, Nelson Point WA. Certificate of Title Volume 2874 Folio 119. Crest Valuation: AUD \$29,600,000. First mortgage (Grantor: Araluen Processing & Logistics Pty Ltd).
Asset 4	Mining plant and equipment on site at Murchison East Project. Asset register as at 30 April 2024. Book value AUD \$12,800,000; forced sale value AUD \$7,000,000 (Crest estimate). Fixed charge under GSD.
Asset 5	100% of shares in Araluen Resources & Exports Pty Ltd held by Hartmann Family Holdings Pty Ltd. Share mortgage registered on PPSR.
Asset 6	Key Person Life Insurance Policy — insured: Mr. T.S. Hartmann. Insurer: Apex Life Assurance Pty Ltd. Policy No. ALA-2024-KP-00441. Sum insured: AUD \$10,000,000. Policy assigned to Lender as collateral.
PPSR Reference	Registration to be lodged within 20 Business Days of Financial Close Date. Expected PPSR registration number: to be confirmed upon lodgement.
LVR at Close	53.2% (AUD \$47,500,000 / AUD \$89,300,000) — within the Lender's maximum permitted LVR of 65% for this asset class.

SCHEDULE 3 — REPAYMENT & AMORTISATION SCHEDULE (SUMMARY)

The table below sets out the quarterly amortisation milestones for the Term Loan Facility (Tranche A). Monthly repayment amounts are shown in Section 7.1. The full month-by-month schedule will be provided by the Lender within 5 Business Days of the Financial Close Date based on the actual drawdown amount.

Period	Phase	Monthly Principal	Quarterly Principal	Estimated Balance (AUD)
Aug 2024 – Jul 2026	Ramp-up (24 months)	\$250,000	\$750,000	\$28,000,000 → \$22,000,000
Aug 2026 – Jul 2029	Steady-State (36 months)	\$380,000	\$1,140,000	\$22,000,000 → \$8,320,000
Aug 2029 – Jun 2031	Tail (23 months)	~\$434,782	~\$1,304,347	\$8,320,000 → \$0
30 June 2031	Final Maturity	—	—	\$0 (fully amortised)

SCHEDULE 4 — FINANCIAL COVENANT COMPLIANCE CERTIFICATE TEMPLATE

The following template is to be completed by the Borrower's Chief Financial Officer and one other director within 45 days of each quarterly test date and submitted to the Lender's Relationship Manager at the address specified in Section 17.1. All calculations must be accompanied by supporting workings and cross-referenced to the Borrower's management accounts for the relevant period.

Agreement Reference	MCB-CFA-2024-00312-SYD
Test Date	[insert: 31 March / 30 June / 30 September / 31 December 20XX]
Reporting Period	12 months ended [test date]
Consolidated EBITDA	AUD \$[XX,XXX,XXX] — see Appendix A
Total Net Debt	AUD \$[XX,XXX,XXX] — see Appendix B
Leverage Ratio	[X.Xx] (covenant maximum: [X.Xx]) ✓ PASS / ✗ FAIL
Net Finance Charges	AUD \$[XX,XXX,XXX] — see Appendix C
Interest Cover Ratio	[X.Xx] (covenant minimum: 2.50x) ✓ PASS / ✗ FAIL
Total Debt Service	AUD \$[XX,XXX,XXX] — see Appendix D
DSCR	[X.Xx] (covenant minimum: 1.20x) ✓ PASS / ✗ FAIL
Unrestricted Cash + Undrawn RCF	AUD \$[XX,XXX,XXX] (minimum: AUD \$5,000,000) ✓ PASS / ✗ FAIL
Events of Default	✓ None exist as at the test date / ✗ See attached notice
CFO Signature	_____ Date: _____
Director Signature	_____ Date: _____

SCHEDULE 5 — CONDITIONS PRECEDENT CHECKLIST

All items below must be received by the Lender in form and substance satisfactory to the Lender by 5:00 PM Sydney time on the Financial Close Date (1 July 2024), unless otherwise indicated. Items marked with an asterisk (*) may be provided within the specified timeframe after Financial Close.

CP-01	Executed original of this Agreement and all Schedules
CP-02	Executed General Security Deed (Borrower as grantor)
CP-03	Executed Mortgage over Mining Tenement ML70-0234, WA
CP-04	Executed Mortgage over Strata Title SP 83471, Sydney NSW
CP-05	Executed Mortgage over Port Hedland Processing Facility
CP-06	Executed Share Mortgage (Hartmann Family Holdings Pty Ltd)
CP-07	Executed Guarantee and Indemnity — Hartmann Family Holdings Pty Ltd
CP-08	Executed Guarantee and Indemnity — T.S. Hartmann (personal)
CP-09	Executed Guarantee and Indemnity — Araluen Processing & Logistics Pty Ltd
CP-10	Executed Guarantee and Indemnity — R.T. Nakamura (personal)
CP-11	Certified copy of Board Resolution ARE-BR-2024-042 authorising execution
CP-12	ASIC company searches (not more than 5 Business Days old) for all Obligor
CP-13	Certified copy of Borrower's constitution
CP-14	Carrington & Webb legal opinion dated on or about Financial Close Date
CP-15	Evidence of repayment of WABA facility or irrevocable repayment undertaking
CP-16	Crest Valuations report CV-2024-0441 (already received — confirmed satisfactory)
CP-17	Life insurance policy assignment executed (Apex Life Policy ALA-2024-KP-00441)
CP-18	* PPSR registration lodged within 20 Business Days of Financial Close
CP-19	* WA land titles mortgage registration confirmation within 30 Business Days
CP-20	Payment of establishment fee AUD \$237,500 and lender's legal costs AUD \$185,000

END OF AGREEMENT

Meridian Commercial Bank Limited | Agreement Ref: MCB-CFA-2024-00312-SYD
This document comprises 24 pages including five Schedules.
Enquiries: +61 2 9247 8800 | corporatebanking@meridianbank.com.au